

## MASTER SERVICES & TECHNICAL PARTNERSHIP AGREEMENT

For External Mentors, Test Series Providers & Service Partners on the Edurack Platform

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| <b>Agreement Reference ID:</b>   | EDURACK-EXT-2026-WAG                                                 |
| <b>Effective Execution Date:</b> | ____ day of _____, 2026                                              |
| <b>Governing Entity:</b>         | Edurack Private Limited (Co-Founding Operating Entity of edurack.in) |
| <b>Governing Jurisdiction:</b>   | New Delhi, NCT of Delhi, India                                       |
| <b>Applicable Statutes:</b>      | Indian Contract Act, 1872 • Information Technology Act, 2000         |

This Agreement establishes a formal, legally binding framework between Edurack and the External Partner / Mentor, covering engagement terms, revenue-share distribution, test-series submission protocols, intellectual property protection, statutory child-safety compliance, student data privacy, and service expectations.

## PARTIES TO THE AGREEMENT

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THIS MASTER SERVICES & TECHNICAL PARTNERSHIP AGREEMENT (the “Agreement”) is made and entered into as of the Effective Date written above, by and between:

**EDURACK** (edurack.in), an educational technology platform operated by its founding team (represented by its Co-Founding Team, including Vishal Sharma, Tarun Yadav, Archita Priyadarshinee, and corporate assignees), having its principal operating address at Delhi, India, hereinafter referred to as the “Company”, “Platform”, or “Technical Partner” (which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors, affiliates, and permitted assigns) of the FIRST PART;

AND

**THE EXTERNAL SERVICE PROVIDER / MENTOR / INSTITUTIONAL PARTNER**, whose detailed particulars, identity proofs, and banking records are set forth in Schedule A annexed hereto, hereinafter referred to as the “External Partner” or “Mentor” (which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its executors, administrators, heirs, legal representatives, and permitted assigns) of the SECOND PART.

The Company and the External Partner are hereinafter collectively referred to as the “Parties” and individually as a “Party”.

### RECITALS & CONTEXT

**WHEREAS**, the Company owns, manages, and operates the proprietary digital platform ‘EDURACK’ (accessible via edurack.in and authorized client applications), featuring 1:1 pixel-exact Computer Based Test (CBT) simulators replicating the National Testing Agency (NTA) interfaces for competitive examinations (including NEET, JEE, CUET, and IPMAT), structured syllabus-driven tracking engines, performance analytics, and curated mentorship spaces;

**WHEREAS**, Edurack operates primarily as the Technical Partner providing digital infrastructure, host environments, test ingestion engines, payment processing interfaces, and administrative management portals to enable Mentors to host independent batches and distribute educational material;

**WHEREAS**, the External Partner possesses specialized domain expertise, competitive exam rank credentials, educational pedagogy, mentoring experience, or proprietary educational mock curriculum, and desires to monetize its services, host mentorship cohorts, deliver test review sessions, and provide structured academic counseling to students enrolled on the Edurack Platform; and

**WHEREAS**, the Parties wish to establish a formal, legally binding framework outlining terms of engagement, revenue share distribution, test series submission rules, intellectual property protection, student data privacy compliance, and service expectations;

**NOW, THEREFORE**, in consideration of the mutual covenants, promises, representations, and warranties contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

## 1. DEFINITIONS AND INTERPRETATION

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**1.1. “Applicable Law”:** All applicable statutes, enactments, acts of legislature, ordinances, rules, bye-laws, regulations, notifications, guidelines, and policies of India, including the Indian Contract Act, 1872, the Information Technology Act, 2000 (and amendments/rules), and the Digital Personal Data Protection Act, 2023 (DPDPA).

**1.2. “CBT Simulator”:** The proprietary Computer Based Testing interface, engine, algorithms, scoring mechanisms, and exam replica environments owned and operated exclusively by Edurack.

**1.3. “Gross Student Billings”:** The total gross fees collected from registered students for purchasing the External Partner’s mentorship space, cohort sessions, customized test modules, or study packages, inclusive of applicable taxes.

**1.4. “Mentor Content”:** All study notes, mock questions, video explanations, strategy decks, and live interaction curriculum uploaded or delivered by the External Partner to enrolled students through the Platform.

**1.5. “Net Distributable Revenue”:** Gross Student Billings minus applicable statutory taxes (GST), payment gateway processing charges (typically 2.0% to 2.5%), and verified chargebacks or student refunds.

**1.6. “Platform IP”:** All proprietary code, front-end designs, CBT screen simulators, question palettes, algorithms, database architectures, trademarks, trade secrets, and logos of Edurack.

**1.7. “Student Personal Data”:** Any data relating to an identified or identifiable student enrolled on Edurack, including contact numbers, email addresses, rank records, test performance analytics, and session interaction logs.

**1.8. “Technical Partner Framework”:** The operational model wherein Edurack acts as the technology provider (LMS, CBT simulator, admin tools) while the External Mentor acts as the primary service and academic provider responsible for batch management and student satisfaction.

## 2. SCOPE OF ENGAGEMENT & TECHNICAL PARTNERSHIP MODEL

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### 2.1 Grant of Space & Technical Infrastructure

Edurack grants the External Partner a non-exclusive, revocable, non-transferable license to operate an authorized 'Mentorship Space' or 'Creator Storefront' on edurack.in. Edurack agrees to act as the Technical Partner, providing backend management tools, student connection channels, resource delivery engines, and test simulator access.

### 2.2 Mentor Autonomy over Operations & Pricing

The External Partner retains sole discretion and authority to set batch pricing, class offerings, delivery formats, and class schedules (including adjustments during university exam periods or personal academic commitments).

### 2.3 Batch Ownership & Primary Responsibility

The External Partner explicitly acknowledges that enrolled students purchase mentorship based on the Mentor's individual brand, rank, and offering, not Edurack's direct instruction. Consequently, the primary operational responsibility for batch management, delivery of promised offerings, and direct student communication rests solely with the Mentor.

### 2.4 Student Value & Brand Protection

While the Mentor determines batch pricing and schedules, the Mentor covenants to deliver adequate value, quality content, and proper academic guidance matching the price set for the batch. The Mentor must ensure that enrolled students are satisfied with the mentorship journey. Any persistent failure to deliver value or gross student disappointment that harms Edurack's public reputation shall constitute grounds for account review or termination under Section 7.

### 2.5 Independent Contractor Status

The relationship between Edurack and the External Partner is strictly that of independent contracting parties. Nothing contained in this Agreement shall be construed to create an employment, master-servant, agency, joint venture, or formal partnership between the Parties. The External Partner shall have no power to bind Edurack legally or financially.

### 3. COMMERCIAL TERMS, COMMISSIONS & PAYOUT DISBURSEMENT

#### 3.1 Revenue Share Model

The commercial remuneration payable to the External Partner for subscriptions, course enrollments, and mentorship batches purchased by students shall follow the tier structure detailed below:

| Revenue Stream / Category          | Platform Fee (Edurack) | External Partner Share | Settlement Cycle   |
|------------------------------------|------------------------|------------------------|--------------------|
| Direct Mentor Space / Cohort Batch | 15% of Net Revenue     | 85% of Net Revenue     | Monthly (Net 10th) |
| Co-Branded Premium Test Series     | 25% of Net Revenue     | 75% of Net Revenue     | Monthly (Net 10th) |

#### 3.2 Payout Mechanics & Invoicing

Edurack shall calculate verified Net Distributable Revenue on the last calendar day of each month. Payouts shall be disbursed via automated NEFT/RTGS/UPI to the bank account specified in Schedule A within ten (10) business days following the calendar month end.

#### 3.3 Taxes and Withholdings

All payments made by Edurack to the External Partner shall be subject to applicable statutory deductions of Tax Deducted at Source (TDS) under Section 194J/194C of the Income Tax Act, 1961. The External Partner shall be solely responsible for filing and paying its own Goods and Services Tax (GST) and professional income taxes.

#### 3.4 Refund & Chargeback Deductions

In the event a student initiates a valid refund claim within Edurack's official Refund Policy window due to non-delivery, cancellation, or verifiable deficiency of service by the External Partner, such refunded amounts shall be debited from the External Partner's pending payout ledger.

## 4. SERVICE LEVEL STANDARDS, TEST INGESTION & CODE OF CONDUCT

### 4.1 Representation of Credentials

The External Partner warrants that all academic credentials, competitive exam ranks (e.g., NEET AIR, JEE Advanced Rank, CUET Percentile, Institutional affiliations such as AIIMS/IIT/IIM) provided to Edurack and advertised to students are authentic, accurate, and verifiable. Any falsification of credentials shall constitute immediate cause for summary termination and legal indemnity.

### 4.2 Test Series Ingestion Protocol (Mandatory Advance Notice)

- If the Mentor wishes to launch, append, or ingest new questions/test papers into their batch's CBT Test Series, they must submit a formal request through the Edurack Mentor Admin Portal.
- The request and complete question dataset must be submitted at least 24 to 48 hours prior to the scheduled live time of the test.
- This lead time is mandatory for Edurack's technical team to properly review, format, verify, and ingest the questions into the CBT simulator engine without technical errors. Edurack reserves the right to postpone any test that does not meet this advance notice requirement.

### 4.3 Flexible Schedule & Operational Transparency

Mentors are not bound to rigid hourly quotas during their university exam weeks or personal academic engagements. However, Mentors must proactively notify their enrolled batches regarding any schedule shifts to maintain complete transparency.

### 4.4 Anti-Poaching & Off-Platform Solicitation (Strict Clause)

The External Partner shall NOT directly or indirectly solicit, divert, encourage, or instruct students acquired through Edurack to enroll in external private classes, join unapproved Telegram/WhatsApp groups, or transact off-platform through personal UPI or private accounts. Violation of this clause shall result in immediate forfeiture of accrued payouts and liquidated damages amounting to INR 2,00,000/- (Rupees Two Lakhs) or 5x the estimated transaction value, whichever is higher.

### 4.5 Professional Demeanor & Zero Harassment

The External Partner must maintain absolute decorum, dignity, and professional integrity. The External Partner shall strictly refrain from:

- abusive or discriminatory language;
- unsolicited personal contact or harassment of minor students;
- sharing politically sensitive, sexually suggestive, or objectionable materials; or
- guaranteeing impossible exam ranks or violating advertising guidelines prescribed by the Consumer Protection Act and ASCI.

#### 4.6 Statutory POCSO Reporting & Cooperation

**(a) Mandatory Escalation:** Pursuant to Section 19 of the POCSO Act, 2012, both parties are under a strict statutory obligation to report any suspected or actual child offense to law enforcement. The External Partner must notify Edurack's Grievance Officer in writing within six (6) hours of learning of any such incident.

**(b) Immediate Deactivation:** Upon receiving a POCSO-related complaint, Edurack reserves the right to immediately suspend the External Partner's access, freeze active sessions, and withhold payouts pending investigation.

**(c) Legal Disclosure & Cooperation:** Edurack will report all credible allegations directly to the police. The External Partner covenants to fully cooperate, preserve all digital logs/chat records, and submit to law enforcement inquiries. Failure to report or cooperate shall result in summary termination, forfeiture of earnings, and legal liability under Section 21 of the POCSO Act.

## 5. INTELLECTUAL PROPERTY RIGHTS (IPR)

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### 5.1 Edurack Platform IP

Edurack retains exclusive ownership, title, copyright, and patent rights over the Edurack CBT Simulator engine, screen design replicas, user interface code, algorithmic analysis tools, databases, website content, and trademarks. Nothing in this Agreement grants the External Partner any right to reverse engineer, clone, scrape, or extract Edurack's simulator engine or proprietary question repositories.

### 5.2 External Partner Content & License

The External Partner retains authorship of the proprietary study notes and custom questions created solely by them. However, by publishing or uploading such content onto Edurack, the External Partner hereby grants Edurack a worldwide, non-exclusive, royalty-free license to host, display, stream, and distribute such content to authorized enrolled students during the Term.

### 5.3 Third-Party Infringement Indemnity

The External Partner warrants that any questions, test papers, or lecture materials uploaded do not infringe upon any third-party copyrights, coaching institute modules, or publishers' proprietary books. The External Partner shall defend and hold harmless Edurack from any copyright infringement claims arising from External Partner content.

## 6. DATA PROTECTION, PRIVACY & CONFIDENTIALITY

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### 6.1 Compliance with Privacy Laws

Both Parties acknowledge that they must strictly comply with the Information Technology Act, 2000, and the Digital Personal Data Protection Act, 2023 (DPDPA).

### 6.2 Student Data Ownership

All student contact information, email IDs, phone numbers, parent contact details, and platform interaction logs are the exclusive confidential property of Edurack. The External Partner is granted access solely on a need-to-know basis within the platform dashboard for delivering academic mentorship.

### 6.3 Prohibition on Data Scraping / Export

The External Partner shall NOT export, copy, compile, sell, share, or disclose Student Personal Data to any third party, marketing agency, or competing test prep company under any circumstances.

### 6.4 Confidential Information

Both Parties agree to hold in strictest confidence all commercial terms, financial payouts, technical specifications, and strategic roadmaps shared during the course of engagement, surviving for a period of three (3) years post-termination.

## 7. TERM, TERMINATION AND SUSPENSION

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### 7.1 Term

This Agreement shall come into effect on the Effective Date and shall remain valid for the duration of the specific batch or program cycle selected and declared by the External Partner in Schedule B (the "Initial Term"). Upon completion of the initial batch cycle, this Agreement may automatically renew for subsequent batch cycles or one-year terms upon mutual written agreement or continued operation on the Platform, unless terminated earlier in accordance with the terms herein.

### 7.2 Termination for Convenience

Either Party may terminate this Agreement without cause by providing thirty (30) days' written notice to the other Party, provided that all ongoing student batches or active subscription commitments are fully completed before final account closure.

### 7.3 Termination for Cause

Edurack reserves the right to immediately suspend or terminate the External Partner's access without notice upon:

- **Material Breach:** Failure to rectify any operational or academic breach within seven (7) days of written intimation.
- **Off-Platform Diversion:** Any attempt to poach students, siphon payments off-platform, or solicit Edurack users.
- **Student Harassment / Misconduct:** Any moral turpitude, sexual harassment, hate speech, or abuse of minor students.
- **Credential Fraud:** Providing fraudulent examination scorecards, fabricated AIR ranks, or forged degrees.
- **Reputational Harm:** Repeated, unaddressed complaints from enrolled students regarding failure to deliver promised materials or complete neglect of batches.

### 7.4 Effect of Termination

Upon termination, the External Partner's access to the Mentor Space dashboard shall be revoked, active batches shall be assigned to substitute mentors to protect student interests, and a final reconciliation of verified unencumbered payouts shall be completed within forty-five (45) business days.

## 8. INDEMNIFICATION AND LIMITATION OF LIABILITY

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### 8.1 Indemnification

The External Partner agrees to indemnify, defend, and hold harmless Edurack, its founders, Co-Founders, employees, and agents from and against any and all claims, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or resulting from: (a) breach of representations, warranties, or covenants herein; (b) infringement of third-party IP rights; (c) gross negligence, willful misconduct, or violation of student safety guidelines; or (d) breach of applicable data protection statutes.

### 8.2 Limitation of Platform Liability

IN NO EVENT SHALL EDURACK BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES ARISING OUT OF SERVER DOWNTIME, THIRD-PARTY PAYMENT GATEWAY GLITCHES, OR INTERNET CONNECTIVITY FAILURES. EDURACK'S MAXIMUM AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL PLATFORM COMMISSION RETAINED BY EDURACK FROM THE EXTERNAL PARTNER'S BATCHES DURING THE PRECEDING THREE (3) MONTHS.

## 9. DISPUTE RESOLUTION, GOVERNING LAW & JURISDICTION

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### 9.1 Amicable Settlement

In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, the designated representatives of both Parties shall meet and endeavor to resolve the dispute amicably within fifteen (15) days of notice.

### 9.2 Arbitration

If unresolved amicably, the dispute shall be referred to and finally resolved by binding arbitration administered by a Sole Arbitrator mutually appointed by the Parties, conducted in accordance with the Arbitration and Conciliation Act, 1996. The seat and venue of arbitration shall be New Delhi, India. The language of arbitration shall be English.

### 9.3 Governing Law & Court Jurisdiction

This Agreement shall be governed by, construed, and enforced in accordance with the laws of the Republic of India. Subject to the arbitration clause, the courts having jurisdiction in New Delhi shall have exclusive jurisdiction over all matters arising hereunder.

## 10. GENERAL MISCELLANEOUS PROVISIONS

### 10.1 Entire Agreement

This Agreement, together with Schedules A and B attached hereto, constitutes the entire agreement between the Parties concerning its subject matter and supersedes all prior proposals, negotiations, and representations.

### 10.2 Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the validity and enforceability of the remaining provisions shall not in any way be affected or impaired.

### 10.3 Assignment

The External Partner may not assign or transfer any of its rights or obligations hereunder without the prior written consent of Edurack. Edurack may freely assign this Agreement to any affiliate or successor entity.

### 10.4 Electronic Execution

In accordance with Section 10A of the Information Technology Act, 2000, this Agreement may be executed in counterparts, electronically signed (Aadhaar eSign, DocuSign, or certified digital token), or confirmed via authenticated electronic acceptance.

## EXECUTION & SIGNATURES

IN WITNESS WHEREOF, the Parties hereto have caused this Master Services & Technical Partnership Agreement to be executed by their duly authorized representatives as of the date first written above.

### FOR EDURACK (edurack.in):

Authorized Signatory:



Name: **Vishal Sharma**

Designation: **Founder & CEO**

Date 10<sup>th</sup> September, 2026

### FOR THE EXTERNAL PARTNER / MENTOR:

Signature \_\_\_\_\_

Full Legal Name \_\_\_\_\_

Designation / Title:  
External Mentor \_\_\_\_\_

Date \_\_\_\_\_

Identity Proof / PAN No. \_\_\_\_\_

## SCHEDULE A | EXTERNAL PARTNER / MENTOR PROFILE & BANKING DETAILS

Please provide complete, accurate, and verifiable details below. Payouts will be processed strictly to the registered bank account specified.

Full Legal Name / Entity Name \_\_\_\_\_

Date of Birth / Incorporation Date \_\_\_\_\_

(DD/MM/YYYY) \_\_\_\_\_

Permanent Account Number \_\_\_\_\_

(PAN) \_\_\_\_\_

Permanent Residential / Official Address \_\_\_\_\_

City \_\_\_\_\_

State \_\_\_\_\_

PIN Code \_\_\_\_\_

Primary Mobile Number /  
WhatsApp (+91) \_\_\_\_\_

Official Email Address \_\_\_\_\_

Account Type: ☐ Savings ☐ Current

Bank Name & Branch \_\_\_\_\_

Bank IFSC Code \_\_\_\_\_

Bank Account Number \_\_\_\_\_

Attachments required: self-attested copy of PAN card; cancelled cheque for bank verification.

## SCHEDULE B | SCOPE OF ENGAGEMENT, EXAM CATEGORY & DELIVERABLES

Check all applicable exam domains and operational commitments undertaken by the External Partner:

| Select                   | Target Exam / Category         | Agreed Service Commitment                                                            |
|--------------------------|--------------------------------|--------------------------------------------------------------------------------------|
| <input type="checkbox"/> | NEET (UG) / Medical Mentorship | Batch ownership, custom study strategy, mock test curation & student query handling. |
| <input type="checkbox"/> | JEE (Main & Advanced) Track    | Speed drills, high-yield strategy sessions & custom CBT test series contribution.    |
| <input type="checkbox"/> | CUET (UG) Domain Prep          | General test / domain paper guidance & full-syllabus CBT test curation.              |
| <input type="checkbox"/> | IPMAT / Management Aptitude    | Quantitative & Verbal ability mentorship, strategy sessions & mock guidance.         |

END OF AGREEMENT DOCUMENT — FOR OFFICIAL USE ONLY

EDURACK EDUTECH LEGAL OPERATIONS

**CONFIDENTIAL & PROPRIETARY | EDURACK (edurack.in)**